

cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the lodestar cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$22,642.51 and the requested representative payment of \$10,000 to Plaintiff is fair and reasonable given her substantial time commitment (over 100 hours) and the risks faced as the class representative

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
6. No appearance is required at the hearing on September 16, 2026.

14. 9:00 AM CASE NUMBER: C24-02813
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

The motions are **continued** to September 30, 2026 at 9:00 a.m. in Department 16.

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's individual claims for civil penalties under the PAGA and to stay non-individual claims pending the outcome of the arbitration.

The Court previously continued these motions to September 16, 2026 to permit supplemental briefing to address new evidence submitted with Golden Gate Bell's reply. Although Defendant's supplemental brief references an opposition from Plaintiff, none appears to have been filed. Plaintiff's counsel shall file a copy of the supplemental brief no later than September 17, 2026.

The parties must be prepared to proceed with an evidentiary hearing on September 30, 2026 at 10:30 a.m., at which counsel may examine the witnesses whose declarations were submitted in support of or in opposition to the motions. Counsel and their witnesses may appear by Zoom. The Court will allot 20 minutes total for the hearing. The Court reserves the right to determine, upon reviewing the brief, whether an evidentiary hearing is necessary. The parties are directed to check the published tentative ruling for the September 30, 2026 9:00 a.m. law and motion calendar for further instructions regarding the evidentiary hearing.

15. 9:00 AM CASE NUMBER: C24-03464
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

See Line 14, above.

16. 9:00 AM CASE NUMBER: C25-00268
CASE NAME: DAVID SISNEROS VS. UNITED PARCEL SERVICE, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: UNITED PARCEL SERVICE, INC.
TENTATIVE RULING:

This hearing is continued, sua sponte, to October 21, 2026 at 9:00 a.m. No appearance is required on September 16, 2026.

17. 9:00 AM CASE NUMBER: C25-00305
CASE NAME: CORAL MICHEL VS. CITY OF MARTINEZ
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF MARTINEZ
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant City of Martinez ("Defendant")'s motion for summary judgment or in the alternative summary adjudication. The motion relates to Plaintiff Coral Michel ("Plaintiff" of "Michel")'s Complaint for premises liability.

Defendant moves for summary judgment on the grounds that Plaintiff cannot prove that the City of Martinez created or had actual or constructive notice of the alleged condition.

For the following reasons, Defendant's motion for summary judgment is **denied**.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part: